

A cause was heard between Plowden and Blundell, plaintiffs, against Braughton, Counsellor of the Inner Temple, Powelle, Hues, and others, for riot and other misdemeanours.

Plowden
and
Blundell
v.
Braughton
and others

Riot and
other mis-
demeanours

The father of Plowden, being a grave lawyer,¹ a man of great judgment and honesty, having a lease from the Queen of the Rectory of Bishop's Castle in Shropshire, at the rent of £19 13s. 4d. *per annum*, and two decrees for this in the Exchequer, the defendant Braughton, having a lease of the Rectory of Lidberrye-northe, adjoining the Rectory of Bishop's Castle, intended [i.e. pretended] that this passed also by his lease, and by colour of this intended a year before to take the tithes, and would 'shuffle' for them, and procured labourers twenty miles distant by means of Hues, a Justice of the Peace, who sent them, and with them Braughton sent his servants, with carts and weapons, to carry the tithes, and they maimed and wounded the servants of Plowden; and Braughton, with other gentlemen, saw this, and did not countermand it.

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Riot in
taking tithes
Misdemeanour
in procuring
labourers

The misdemeanour was that Braughton, being a Judge in three Counties in Wales,² procured before himself as Judge an informer content to have his name used, while Braughton would maintain the suit at his own cost. But this was not proved by any one but one only, who had been sentenced to suffer at the pillory for perjury and other offences, which the Court would not suffer to be read, as he was sentenced before the suit commenced. For a Judge, in his just and honest courses, will be protected by this Court with grace and favour, and the proof to accuse him must be plain and apparent, and such evidence is only *ad informandam conscientiam*; but if he do evil and offend, this Court will punish him with great and heavy

Acquittal
of the mis-
demeanour
because no
proof

Judge
favoured in
well-doing,
and on the
contrary
Proof to
accuse a
judge must
be clear and
without
exception

¹ Edmund Plowden, of the Middle Temple, son of Humphrey Plowden of Plowden, in the parish of Lydbury North, Shropshire. Plowden Hall, which is still in the possession of the family, is a half-timbered building of the Elizabethan and Jacobean periods. It contains a private chapel

and two hiding-places; which are probably accounted for by the fact that Edmund Plowden the lawyer was a staunch Roman Catholic. There is a full-length recumbent monument to his memory in the Temple Church.

² A Justice of the Peace.